ISLAMIC JURISPRUDENCE (FIQH)

FACULTY OF ISLAMIC STUDIES

GENERAL EDUCATION - DIHPE

DOW UNIVERSITY OF HEALTH SCIENCES (DUHS)

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LECTURE: ISLAMIC JURISPRUDENCE (FIQH)
PART 01

Fundamental sources of Islamic jurisprudence

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WHAT IS ISLAMIC JURISPRUDENCE ?

- The word **jurisprudence** comes from **Latin.**
- It's made up of two parts:
  - ***"Juris"*** means *law.*
  - ***"Prudence"*** means *knowledge* or *wisdom.*
- So, jurisprudence means **knowledge or understanding of the law.**
- **Islamic jurisprudence** is the study and understanding of Islamic law.
- It includes not just the laws themselves, but also:
  - The principles behind the laws
  - The methods used to develop and apply those laws
  - The reasoning scholars use to interpret Islamic teachings in legal terms.

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ISLAMIC JURISPRUDENCE: A BRIEF OVERVIEW

- The Prophet Muhammad ﷺ said, "Whomever Allah wants **good** for, He will grant him ***fiqh*** (deep understanding) of the religion." This underscores the importance of understanding Islamic law.
- All Muslim jurists agree that every aspect of life has a legal ruling ***(Hukm)*** in Islamic Law, whether it's related to **worship, trade, crime, politics**, or **personal matters**.
- Some rulings are **explicitly mentioned** in the Quran and Sunnah, while others require jurists to derive them using these sources.

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ISLAMIC JURISPRUDENCE: LEGAL DEFINITION

Islamic Jurisprudence can be defined in many ways:

- **IMAM IBN AL-HAJIB**, in his book ***Mukhtasar al-Muntaha***, explains that:

  "These are the rules that help a qualified scholar (Mujtahid) understand and extract Islamic laws from the Qur'an, Hadith, and other sources."

- This definition explores that Islamic jurisprudence is a body of principles of interpretation by the help of which the Mujtahid is able to derive the law from the detailed evidences in **the Quran, the Sunnah , Ijma** and **Qiyas.**

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Sources of Islamic law

Primary Sources

1. The Quran
2. The Sunnah

Secondary Sources

3. Ijma (Consensus) Collective Reasoning
4. Qiyan (Analogy)

* Logical Reasoning (Aqal)

Hadith: When the Prophet Muhammad ﷺ sent **Mu'adh ibn Jabal** to **Yemen**, he asked: **"How will you judge?"** Mu'adh replied: **"By the Book of Allah."** The Prophet ﷺ asked: **"If not found in it?"** He said: **"Then by the Sunnah of the Messenger of Allah."** He asked: **"If not found in both?"** He said: **"I will use my own reasoning (ijtihad)."** The Prophet Muhammad ﷺ said: **"Praise be to Allah who has guided the messenger of His Messenger to what pleases Him." (Abu Dawood, Tirmidhi – Hasan)**

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PRIMARY SOURCES OF ISLAMIC LAW

THE HOLY QURAN

- The Qur'an is the first and most important primary source of Islamic law. It contains the word of God, as revealed to the Prophet ﷺ through the Angel Gabriel over a period of 23 years.
- It is the fundamental source of all **principles,** and **injunctions** of Islamic law.
- It constitute the moral, philosophical, social, political and economic basis of society.
- The verses revealed in **Makkah** deal with philosophical and theological issues, and those revealed in **Madina** concerned with socio-economic laws.
- The Quran was preserved during the life of Muhammad ﷺ and compiled soon after his death.
- Anything against the Quran from any of the sources of legal thinking will be rejected. All the other sources must be in confirmation with the Quran.

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WHY QURAN?

The primary source of Islamic law

Because Allah orders in the Quran:

- "The month of Ramadan is that in which was revealed the Qur'an – a guidance for mankind and clear proofs of guidance and criterion. ***(Surah Al-Baqarah, 2:185)***
- "It is not for a believing man or a believing woman, when Allah and His Messenger have decided a matter, to have any choice about their decision. And whoever disobeys Allah and His Messenger has certainly strayed into clear error***."(Surah Al-Ahzab, 33:36)***
- "Indeed, We have revealed to you the Book in truth so that you may judge between the people by what Allah has shown you. So do not be an advocate for the deceitful." ***(Surah An-Nisa, 4:105)***

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MUSLIM JURISTS are agreed that those Quranic verses are legal in nature can be categorized as either:

- **Decisive (محکمات):** They are considered as نص or Absolute Categorical Decree.
  - They contain **AWAMIR** (orders) and **NAWAHI** (forbidden)
  - نص conveys a clear meaning and scope.
- **Allegorical (متشابہات):** Their meaning is open to interpretation. Some present day differences on Islamic legal issues are due to the divergence in opinion over these verses and lack of the systematic practice of Consensus/Ijma.

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EXAMPLES OF QUR'ANIC LAW

Theft:

وَٱلسَّارِقُ وَٱلسَّارِقَةُ فَٱقْطَعُوٓاْ أَيْدِيَهُمَا جَزَآءًۢ بِمَا كَسَبَا نَكَٰلًا مِّنَ ٱللَّهِ ۗ وَٱللَّهُ عَزِيزٌ حَكِيمٌ ٣٨

"As for the thief, male or female, cut off their hands as a punishment for what they have done—a deterrent from Allah. And Allah is Almighty, All-Wise." **(Surah Al-Ma'idah, 5:38)**

Adultery: وَلَا تَقْرَبُواْ ٱلزِّنَىٰٓ إِنَّهُۥ كَانَ فَٰحِشَةً ۖ وَسَآءَ سَبِيلًا ٣٢

"And do not go near adultery. Indeed, it is ever an immorality and is evil as a way." **(Surah Al-Isra, 17:32)**

Abortion(without a valid excuse):

وَلَا تَقْتُلُوٓاْ أَوْلَٰدَكُمْ خَشْيَةَ إِمْلَٰقٍ ۖ نَّحْنُ نَرْزُقُهُمْ وَإِيَّاكُمْ ۚ إِنَّ قَتْلَهُمْ كَانَ خِطْـًٔا كَبِيرًا ٣١

"And do not kill your children for fear of poverty. We provide for them and for you. Surely, killing them is a heinous sin." **(Surah Al-Isra, 17:31)**

Usury/Interest: "Those who consume interest will stand [on the Day of Judgment] like those driven to madness by Satan's touch. That is because they say, 'Trade is [just] like interest.' But Allah has permitted trade and forbidden interest." **(Surah Al-Baqarah, 2:275)**

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SUNNAH

The second primary source

- The Sunnah is the next important source, and is commonly defined as "the traditions and customs of Muhammad ﷺ" or "the words, actions and silent assertions of him".
- It includes the everyday sayings and statements of Muhammad ﷺ, his acts, his tacit consent, and acknowledgments of statements and activities.
- The meaning of Quranic verses and their application have to be understood in the light of Prophet ﷺ sayings, actions, practices and explanations.

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HOW DOES THE SUNNAH QUALIFIES AS THE SECOND SOURCE OF ISLAMIC LAW?

As the final messenger of Allah, the Prophet Muhammad ﷺ alone is authorized to determine the meanings of the Quran. As the Quran mentions it:

- **"Indeed, in the Messenger of Allah you have an excellent example for whoever has hope in Allah and the Last Day and remembers Allah often."**
  (Surah Al-Ahzab, 33:21)
- **"And when you do not bring them a sign, they say, 'Why have you not contrived it?' Say, 'I only follow what is revealed to me from my Lord. '"**
  (Surah Al-A'raf, 7:203)

Obedience to the Prophet has been enjoined upon his followers:

- **"And obey Allah and the Messenger so that you may receive mercy."**
  (Surah Aal-e-Imran, 3:132)

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LAWS IN SUNNAH

INHERITANCE:

"A Muslim may not inherit from a Non-Muslim, nor may a Non-Muslim inherit from a Muslim.“ (Agreed upon)

THEFT:

"The Sunnah limits the application of the hadd punishment for theft to cases where the stolen wealth reaches the nisab (minimum threshold) and is taken from a place of secure custody.”

ADULTERY:

"The Qur'anic punishment of 100 lashes applies to the unmarried person guilty of zina (fornication). In the case of a married person, the Sunnah prescribes the punishment of death by stoning (rajm), as established through authentic hadith and the practice of the Prophet Muhammad ﷺ.”

UNLAWFUL FOOD

Ibne Umar narrates that: Allah’s Messenger prohibited eating the animal which feeds on filth or drink its milk. (Tirmizi)

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IJMA: THE THIRD SOURCE

Definition of Ijma (Consensus)

Ijma' refers to the consensus of Islamic scholars on a particular legal or religious issue. It is considered the **third source of Islamic law**, after the **Qur'an** and the **Sunnah**.

- If a legal ruling is not found in the Qur'an or Sunnah, Islam permits scholars to derive a solution based on consensus.
- **Ijma'** represents the **universal agreement** of qualified Muslim jurists and is regarded as **authoritative and binding**.
- Once a ruling is agreed upon by the majority of scholars, it becomes a recognized part of **Islamic jurisprudence**.

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NATURE AND SCOPE OF IJMA (CONSENSUS) IN ISLAMIC LAW

- **Ijma** does not hold the same level of reverence as the Qur'an or the Sunnah of the Prophet Muhammad ﷺ.
- However, it holds **law-making authority** in Islamic jurisprudence when the Qur'an and Sunnah do not provide direct legal answers or when the guidance they offer is **incomplete** in addressing new circumstances.
- It is important to note that although the **principles found in the Qur'an and Sunnah are universal**, they often require further interpretation and development to be applied effectively in diverse and evolving contexts.
- For this reason, **Muslim jurists** have resorted to **Ijma** (scholarly consensus) as a means to derive rulings and expand upon existing legal frameworks.

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WHY IJMA IS USED AS A SOURCE OF ISLAMIC LAW

The authority of Ijma as a legal source is founded on the following verse of the Quran:

- "And hold firmly to the rope of Allah all together and do not become divided. " **(Surah Aal-E-Imran 3:103)**
- "And those who strive for Us – We will surely guide them to Our ways. And indeed, Allah is with the doers of good."
  (Surah Al-‘Ankabūt 29:69)
- "And when there comes to them information about [public] security or fear, they spread it around. But if they had referred it back to the Messenger or to those of authority among them, then the ones who can draw correct conclusions from it would have known about it."
  (Surah An-Nisā’ 4:83)

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EXAMPLES OF IJMA

- Election of **Hazrat Abu Bakr** as the first caliphs through consensus.
- Compilation of the Quran in textual form during the caliphate of **Hazrat Abu Bakr.**
- Taraveeh prayers were started in congregation during the period of **Hazrat Umar.**
- Second call for Juma prayers during the caliphate of **Hazrat Usman**.
- **Qadiyanis** are **non-Muslims** for they do not believe Prophet Muhammad ﷺ as the last of the messengers.
- **Loud speaker** can be used in prayer if needed.
- **Satanic pillars** were enlarged in Mina after consensus.
- Nikkah is allowed on **Skype** and **video** call etc. when there is no ambiguity on both the sides.

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QIYAS (ANALOGICAL DEDUCTION): 4TH SOURCE OF ISLAMIC LAW

Qiyas, or analogical deduction, is the **fourth source of Shariah**. It involves applying an existing legal ruling from the Qur'an or Sunnah to a new case that shares a similar underlying cause or rationale.

This method is used when a legal issue is **not explicitly addressed** in the Qur'an or Sunnah, but a comparable precedent exists.

For valid application, four essential elements must be present:

- **Asl** اصل: the original case with a known ruling.
- **Faraʿ** فرع: the new case requiring a ruling.
- **Illah** علة: the effective cause or common rationale between the two cases.
- **Ḥukm** حكم: the legal ruling extended to the new case.

These components must be carefully preserved and cannot be subject to reform, as they ensure consistency and integrity in Islamic legal reasoning.

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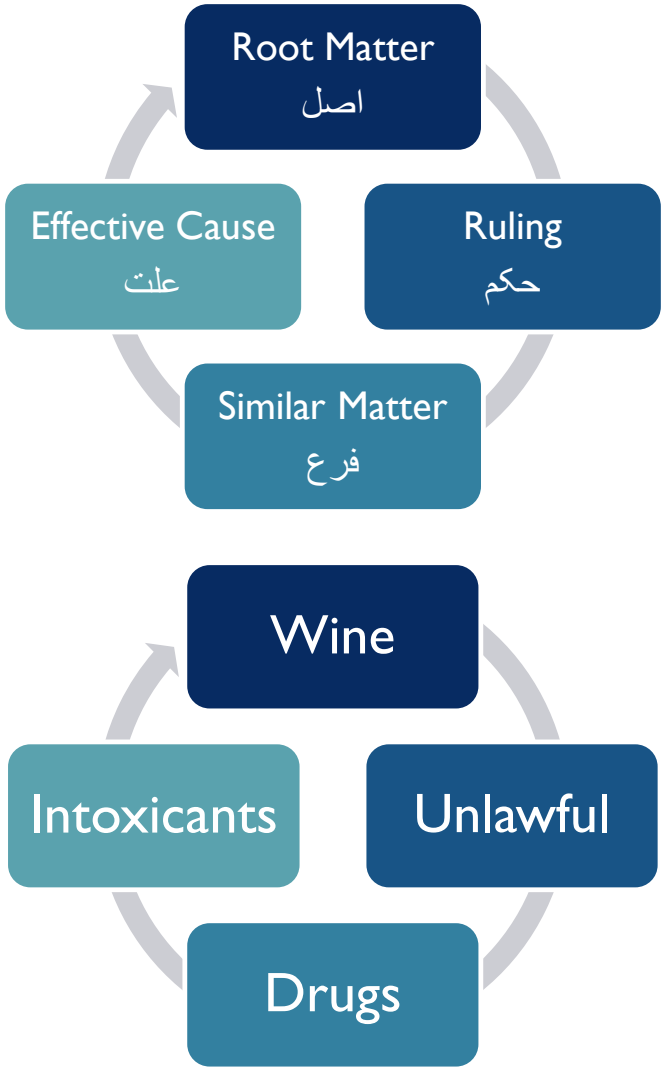
EXAMPLES OF QIYAS

As the Prophet Muhammad ﷺ said:

(كُلُّ مُسْكِرٍ خَمْرٌ وَكُلُّ مُسْكِرٍ حَرَامٌ)

“Every intoxicant is khamr, and every khamr is haram (forbidden).”

Based on this principle, wine is prohibited in Islam due to its intoxicating nature. By **analogy (Qiyās)**, other intoxicating substances such as **opium, marijuana, cocaine**, and similar drugs, which did not exist at the time the ruling on wine was revealed are also declared **haram** by Muslim jurists, because they share the same **ʿillah/ Illat (effective cause)** of intoxication.



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EXAMPLES OF QIYĀS (ANALOGICAL REASONING)

- **Wine → Cocaine/Marijuana**: Both are intoxicants → **Haram**
- **Gold & Silver → Paper money**: Both used as currency → **Zakat applies**
- **Zakat on livestock → Poultry farms**: Both are income-generating animals → **Zakat applies**
- **Gold jewelry → Platinum jewelry**: Both valuable metals → **Zakat applies**
- **Silk garments → Artificial silk**: Both luxurious wear for men → **Same restriction (if applies)**
- **Interest on gold/silver → Bank interest**: Both involve riba → **Prohibited**
- **Breastfeeding from a woman → Feeding from a bottle of her milk**: Both establish foster relation → **Foster ties apply**
- **Selling grapes for wine → Selling drugs for addiction**: Both facilitate sin → **Prohibited**

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Pillars of Islam and their significance

Lecture # 4
Part 03

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INTRODUCTION TO THE FIVE PILLARS

- Foundational acts of worship and devotion in Islam.
- Derived from **Hadith Jibril** (Sahih Muslim).
- **Framework** for a Muslim's life in belief and action.
- Defines both internal belief and external practices.
- Builds personal and societal **ethics.**

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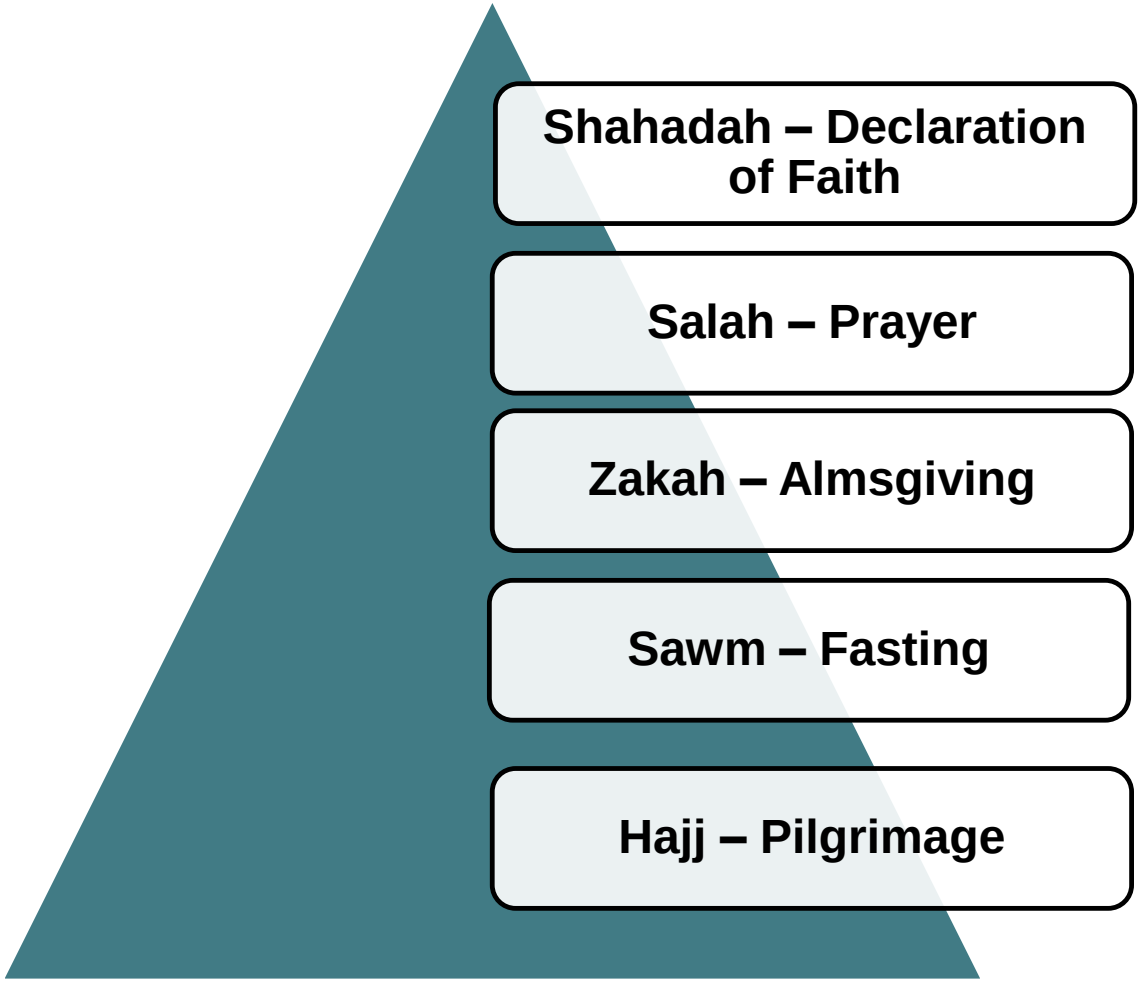
بُنِيَ الإسلامُ على خمسٍ

(“ISLAM IS BUILT ON FIVE...”) (صحیح مسلم)

- **Hadith Jibril** (Sahih Muslim): "Islam is built on five..."
- Angel Jibril questioned the Prophet Muhammad ﷺ in front of companions.
- **Purpose:** To teach Islam in a summarized form.
- Shows the **foundational nature** of these acts.
- A practical **roadmap** for every Muslim.

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OVERVIEW OF THE FIVE PILLARS



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PILLAR I – WITNESSING SHAHADAH

اَشْهَدُ اَنْ لَّآ اِلٰهَ اِلَّا اللّٰهُ وَحْدَهٗ لَاشَرِيْكَ لَهٗ وَاَشْهَدُ اَنَّ مُحَمَّدًا عَبْدُهٗ وَرَسُوْلُهٗ

"I bear witness that there is none worthy of worship except Allah, the One alone, without partner, and I bear witness that Muhammad is His servant and Messenger"

- Testimony of belief in Tawheed and Risalah.
- Core identity of a Muslim.
- Foundation for all other acts of worship.
- Recognizing the ultimate truth and guidance.

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SHAHADAH – SIGNIFICANCE

- **Entry into Islam –** no other act valid without it.
- **Reinforces monotheism –** Tawheed.
- **Denial of shirk** (polytheism).
- **Connects** heart and tongue with faith.
- **Basis for unity** among Muslims.

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SHAHADAH – TECHNICAL ASPECTS

- Must be spoken with sincerity and knowledge.
- **Seven conditions: knowledge, certainty, acceptance, truth, sincerity, love, submission.**
- **Verbal + internal affirmation = valid Shahadah.**
- Not just lip service – must reflect in deeds.
- **Hadith: 'Whoever says La ilaha illallah... will enter Paradise' (Bukhari)**

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PILLAR 2 – SALAH: DEFINITION AND OBLIGATION

- Five daily prayers are obligatory **(Fard)**.
- **Surah An-Nisa (4:103): 'Prayer is prescribed at fixed times'.**
- Differentiates Muslim identity (Hadith).
- Acts as a reminder of Allah throughout the day.
- A spiritual recharge and moral compass.



Prayers is obligatory upon every Muslim

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SALAH – IMPORTANCE

- **Hadith**: **'First deed to be judged will be prayer'** ***(Tirmidhi).***
- **Surah Al-Ankabut (29:45):** 'Prayer prevents immorality'.
- Builds discipline, humility, and consistency.
- Brings peace, order, and balance in life.
- Symbol of submission and communication with Allah.

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SALAH – TECHNICAL REQUIREMENTS

- Purity (wudu/ghusl).
- Correct timing and Qiblah direction.
- Fulfilling Rukn (obligatory acts).
- Avoiding actions that nullify prayer
- Hadith: 'Pray as you have seen me pray' (Bukhari).

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TIMINGS OF SALAH



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PILLAR 3 – ZAKAH: DEFINITION

- **Obligatory almsgiving:** 2.5% of savings.
- **Surah At-Tawbah (9:103): 'Take from their wealth... to purify them'**.
- Strengthens socio-economic justice.
- Test of sincerity and detachment from wealth.
- Recognized as a right of the poor in Islam.

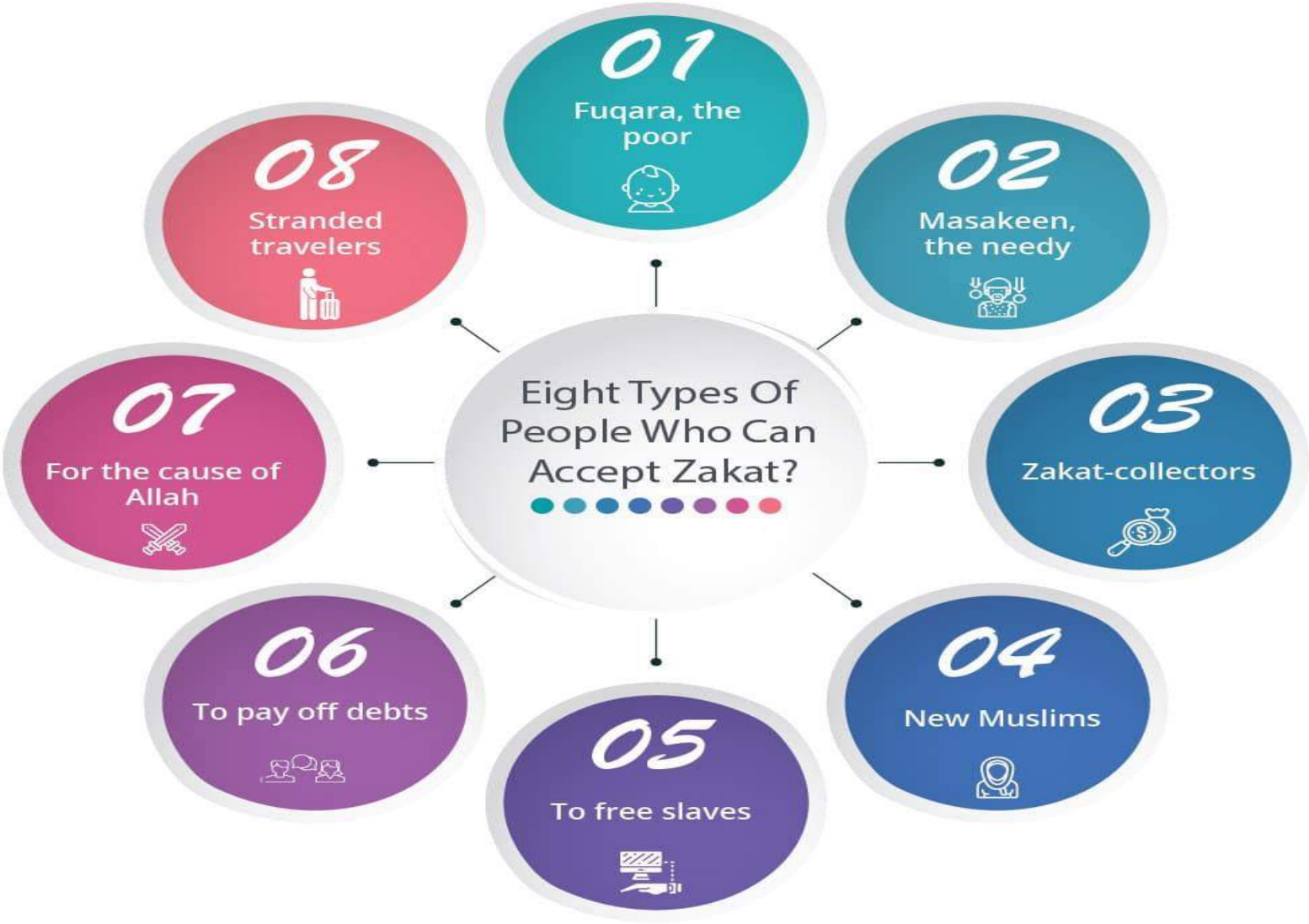
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ZAKAH – BENEFICIARIES

- ***Surah At-Tawbah* (9:60): 8 categories – Poor, needy, Zakah workers, reverts, slaves, debtors, Allah's cause, travelers.**
- Fair distribution ensures justice.
- Builds communal trust.
- Supports religious and humanitarian causes.
- Helps eliminate economic disparity.

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The Recipients of Zakat who can receive Zakat



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ZAKAH – TECHNICAL CONDITIONS

- **Nisab:** minimum wealth threshold.
- **1 lunar year** of possession required.
- Different rules for cash, gold, livestock, etc.
- **Zakah vs. Sadaqah – obligatory vs. voluntary.**
- Detailed regulations in Fiqh literature.

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ZAKAH – SOCIETAL IMPACT

- Encourages responsibility toward society.
- Reduces **poverty** and **hoarding.**
- Promotes fair economic systems.
- Empowers the weak and marginalized.
- Fulfills collective obligation ***(fard kifayah).***

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PILLAR 4 – SAWM: DEFINITION

- **Surah Al-Baqarah (2:183): 'Fasting is prescribed... so you may attain Taqwa'.**

يَـٰٓأَيُّهَا ٱلَّذِينَ ءَامَنُواْ كُتِبَ عَلَيْكُمُ ٱلصِّيَامُ كَمَا كُتِبَ عَلَى ٱلَّذِينَ مِن قَبْلِكُمْ لَعَلَّكُمْ تَتَّقُونَ (١٨٣)

- **Ramadan:** 9th month of Islamic calendar.
- Abstention from **food, drink, intimacy**.
- Spiritual purification and discipline.
- Includes night prayers and charity.

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INTRODUCTION TO "SAUM"

VERBAL AND TECHNICAL MEANING

- **Sawm** means *to abstain*. In Islam, it refers to refraining from eating, drinking, and marital relations from **dawn to sunset**, with the intention of fasting.
- It is the **fourth pillar of Islam** and is **obligatory during Ramadan**.
- Denying its obligation **removes one from Islam**, while neglecting it without excuse makes one a **Faasiq (open sinner)**, liable for punishment on the Day of Judgment.

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SAWM – OBJECTIVES

- **Develops Taqwa** (God-consciousness).
- Fosters **empathy** with the poor and hungry.
- Cultivates **patience** and **self-control.**
- Strengthens **willpower** and **spirituality.**
- Encourages **gratitude** and **reflection.**

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SAWM – TECHNICAL ASPECTS

- **Niyyah (intention)** is mandatory before **Fajr.**
- **Invalidators:** eating, drinking, intimacy, intentional vomiting.
- **Excused: sick, travelers, menstruating women, pregnant or nursing mothers.**
- Missed fasts must be made up.
- **Expiation (Kaffarah)** in case of willful breaking.

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SAWM – HEALTH & SOCIAL BENEFITS

- Promotes metabolic health and detoxification.
- Reduces bad habits like smoking or overeating.
- Strengthens social bonds through iftar and taraweeh.
- Increases charitable giving and community care.
- Encourages balanced lifestyle and mindfulness.

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PILLAR 5 – HAJJ: DEFINITION

- Obligatory pilgrimage once in lifetime if capable.
- **Surah Al-Imran (3:97)**: 'Pilgrimage to the House is a duty owed to Allah'.
- Includes physical, financial, and spiritual exertion.
- Symbol of equality and unity.
- Commemorates legacy of Prophet Ibrahim (AS).

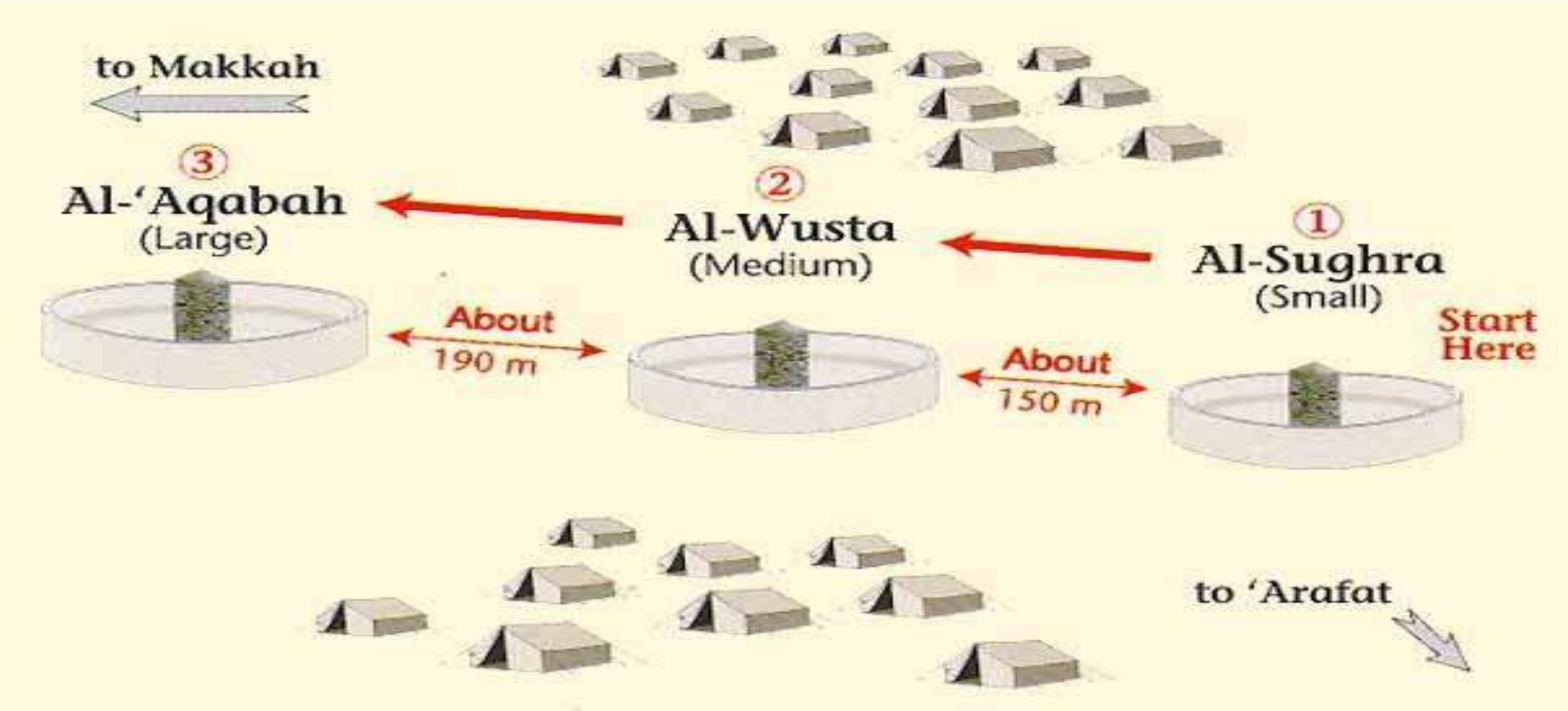
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HAJJ – RITES AND DAYS

- **Ihram:** state of purity and intention.
- **Tawaf:** circumambulation around **Ka'bah.**
- **Sa'i:** running between **Safa** and **Marwah.**
- **Arafah**: standing in prayer on **9th Dhul-Hijjah.**
- **Stoning** at Mina, **sacrifice**, and **final Tawaf.**

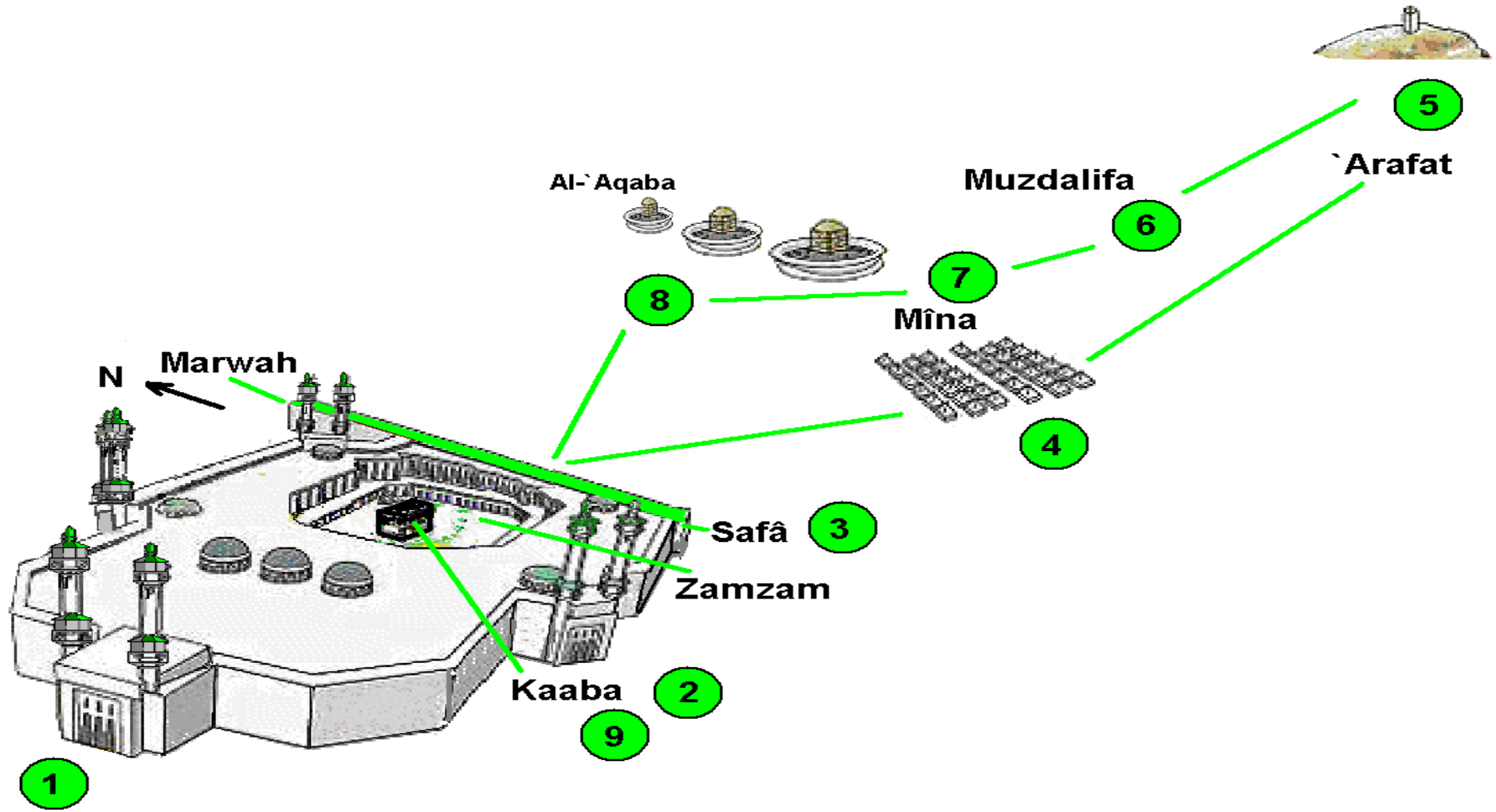
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PELTING STONES (جمرات)



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HAJJ – SPIRITUAL SIGNIFICANCE

- A journey of repentance and renewal.
- Fulfills one of the most virtuous deeds (Hadith).
- Equality of all Muslims (white Ihram clothing).
- Symbolizes the Day of Judgment (standing at Arafah).
- Reinforces submission to Allah.

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HAJJ – TECHNICAL REGULATIONS

- **Conditions:** **adulthood, freedom, financial/physical ability.**
- **Types:** **Ifrad, Qiran**, and **Tamattu.**
- **Prohibitions in Ihram:** **no shaving, hunting, perfume, intimacy.**
- Dam (penalty) for violations.
- Women require a **Mahram.**

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HOLISTIC VIEW OF THE PILLARS

- **Shahadah:** spiritual belief and identity.
- **Salah:** physical devotion and discipline.
- **Zakah:** financial purification and equity.
- **Sawm**: psychological resilience and self-control.
- **Hajj:** culmination of faith in action.

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CONCLUSION AND REFLECTIONS

- Five Pillars are essential for individual and societal reform.
- Each pillar develops a key dimension of the human self.
- Balance between body, soul, and society.
- Fosters humility, accountability, and purpose.
- Gateway to a fulfilling, meaningful, and ethical life.

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THANK YOU

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